



1. Manufacturer Authorization

The solicitation requires proof of manufacturer authorization, such as a dealer or distributor agreement. Would authorization from a regional authorized dealer or manufacturer-backed supplier be acceptable, provided that the offered equipment is sourced through an authorized channel and the quotation includes supporting documentation?

Answer: Yes, regional authorized dealer or manufacturer-backed supplier is acceptable as long as the contractor can provide a 1-year manufacture backed warranty. Yes, the contractor shall provide the supporting documents from the regional authorized dealer or manufacture-backed supplier.

2. Local or Regional Service Capability

The solicitation requires documented evidence of local or regional service capability. Would this requirement be satisfied through a local service representative or subcontractor supported by the manufacturer or authorized regional dealer, provided that the quotation includes the representative's contact details, warranty response time, spare parts availability, and technical capability documentation?

Answer: Yes, a local service representative or subcontractor supported by the manufacturer or authorized regional dealer is acceptable.

3. Spare Parts and Optional Features

Please confirm whether the required price list for recommended spare parts and optional features will be evaluated as part of the total quoted price, or whether it is requested for informational/reference purposes only.

Answer: Spare parts list will be evaluated as informational/reference purposes only. Optional features will be evaluated as part of the total quoted price.

4. VAT / Customs Exemption Support

The solicitation states that VAT is not applicable because the U.S. Embassy has a tax exemption certificate, while delivery is required on a DDP basis. For pricing and logistics planning, please confirm whether the Embassy will provide the



necessary tax exemption certificate and any supporting customs documentation required for import/delivery to the Embassy.

Answer: According to Turkmenistan customs code the diplomatic shipments are exempt from customs duties.

Important nuance – the shipment must be consigned to the U.S. Embassy in Ashgabat. This way customs will not impose VAT.

We will provide a diplomatic note and a power of attorney to the supplier's broker so they could clear the shipment through customs.

Please keep in mind that the supplier must avoid routing via Iran.

5. Training and Acceptance Sequence

The solicitation requires onsite training within 5 working days of delivery and acceptance, while final acceptance is also based on successful completion of training. Please confirm the intended sequence: delivery and initial inspection first, followed by onsite training, then final acceptance.

Answer: Yes, the intended sequence will be: delivery and initial inspection first, followed by onsite training, then final acceptance.

6. Would the Government consider boom lifts manufactured in China, provided that the equipment otherwise meets the technical specifications, is CE-compliant, is supplied through an authorized dealer/distributor, and is clearly identified in the offer as an "Other End Product" with country of origin listed as China under the applicable Trade Agreements Certificate?

Alternatively, please confirm whether the offered boom lifts must be U.S.-made or designated-country end products only.

Answer: No, the Government cannot consider boom lifts manufactured in China for this solicitation.

Detailed Clarification:

- **Applicability of Trade Agreements Act:** This procurement is subject to the Trade Agreements Act (TAA) as implemented by FAR Subpart 25.4 and clause FAR 52.225-5.



- **Country of Origin Restriction:** In accordance with FAR 52.225-5(b), the Contractor shall deliver only U.S.-made or designated country end products. China is not a designated country under FAR 25.003.
- **Offer Eligibility:** Offers proposing end products manufactured in non-designated countries, including China, are not eligible for award under this solicitation.
- **Trade Agreements Certificate:** While FAR 52.225-6 allows offerors to identify “Other End Products,” such products are not compliant with the requirements of this solicitation and will not be considered for award.
- **Substantial Transformation:** To qualify as compliant, the end product must be substantially transformed in the United States or a designated country, as defined in FAR 25.003.
- **Technical Compliance:** Meeting technical specifications, CE compliance, or being supplied through an authorized distributor does not override TAA country-of-origin requirements.

Conclusion:

All offered articulating boom lifts must be U.S.-made or designated country end products in order to be considered for award.